

Relief also cannot be granted through the pourover will. "In the absence of any transfer to [a] trust prior to [decendent's] death," assets become part of the decedent's estate despite will language expressing decedent's desire that assets be held in trust. *Placencia v. Strazicich* (2019) 42 Cal.App.5th 730, 735 & 743-744 (emphasis added). "It [is] error for the court to award [such property] directly to [a] trust in the absence of a probate proceeding." *Id.*, citing *Estate of Hart* (1957) 151 Cal.App.2d 271, 280–281. See also Prob.C. § 7001. "[A] probate court ha[s] no power to consider the legality of a will until it [is] regularly brought before it by a petition for its probate." *Estate of Burnett* (1935) 6 Cal.App.2d 116, 123.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the court and the parties to prepare for the hearing. Local Rule 80.1.4.

26. S-PR-0014215 In Re the Estate of Ward, Jay

Petition to administer estate is recommended for approval as prayed.

27. S-PR-0014216 In Re the Estate of Albrecht, Peter

Missing sufficient publication of notice of hearing. Notice as published states incorrect location information for Department 2. Department 2 is located at Historic Courthouse, 101 Maple Street, Auburn, and not at the Hon. Howard G. Gibson Courthouse in Roseville.

28. S-PR-0014313 In Re the Robert Des Jardin & Virginia Des Jardin Rev Trust

Appearance is required for status hearing re ex parte application and order.
Missing evidence of service of ex parte order.